13 August 2026 (Constitution)

Detailed Lecture Notes: Reservation, Mandal Commission, and Indra Sawhney Case

I. Introduction and Context Setting

A. Attendance and Class Atmosphere

The lecture opens with informal attendance taking, revealing the casual yet disciplined environment of a constitutional law class. The professor uses roll numbers (1, 3, 5, etc.) to mark attendance, engaging students in light-hearted conversation about their backgrounds, breakfast, and health.

Key Takeaway: The professor emphasizes the importance of presence and participation, setting the tone for a serious academic discussion masked in casual banter.

B. Student Presentation on Article 15(4) and 16(4)

1. Core Question of the Presentation

A student, Diksha from Haryana (Mahendragarh), presents on whether **Article 15(4) and 16(4) are Fundamental Rights or exceptions** .

Key Clarification by Professor:

- Articles 12 to 35 are Part III of the Constitution, devoted to Fundamental Rights
- Article 15(4) and 16(4) are **within Part III**, so the question of whether they are Fundamental Rights is not the real doubt
- The actual doubt is whether these provisions are **exceptions to Articles 15(1) and 16(1)** or are they **facets of equality itself**

2. Analysis of Article 16(4) - Not an Exception

State of Kerala v. N.M. Thomas (1976) - Seven-Judge Bench

- Five judges held that **clause 4 of Article 16 is NOT an exception** to Article 16
- It is well within the purview of Article 16 as a **facet of equality**
- It provides **equality of opportunity** in line with clause (1)
- It gives **positive support and content** to Article 16(1)

Justice Chinnappa Reddy's View:

- Repeated this position in **A.B.S.K. Sangh v. Union of India**
- **Case Name:** *Akhil Bharatiya Shoshit Karmachari Sangh v. Union of India*
- This demonstrates the power of PIL (Public Interest Litigation)

Indra Sawhney v. Union of India (1992) - The Mandal Case

- Affirmed that Article 16(4) is not an exception
- A nine-judge bench - the largest bench for reservation matters to date

3. Extending the Logic to Article 15(4)

The same logic applies to Article 15(4):

- Both are based on the **Right to Equality (Article 14)**
- They are facets of equality, not exceptions
- **Distinction:** Ronald Dworkin's distinction between:
  - *Right to equal treatment* (formal equality)
  - *Right to be treated as an equal* (substantive equality)

Substantive Equality Argument:

- Unequal treatment of equals **is** a violation of equality
- Equal treatment of unequals **is also** a violation
- Article 15(4) is **not based on prejudice, contempt, or insult** towards forward classes
- It promotes equality by requiring the State to take **affirmative action** to remove discrimination

4. Arguments Supporting This View

Constitutional Practices:

- Article 15(4) and 16(4) have been implemented through **executive action orders** without separate legislation
- Courts have consistently held this constitutional
- A Fundamental Right cannot be taken away without authority of law; treating these as exceptions would render executive actions unconstitutional

Directive Principles of State Policy (DPSP) Support:

- Courts read DPSPs in **harmony with Fundamental Rights** (basic structure)
- This is supported by:
  - **Article 38** - State to secure social order for welfare of people
  - **Article 46** - State to promote educational and economic interests of SCs, STs, and weaker sections

Example: The Right to Education (Article 21A) was read from:

- Article 21 (Right to Life and Personal Liberty)
- With DPSPs in Articles 41, 45, and 46

Article 335 - Claims of SCs and STs:

- Imposes a **positive obligation** on the State to consider claims of SCs/STs
- "Consistently with maintenance of efficiency of administration"
- This cannot be used to avoid reservation under Article 16(4)

Hohfeldian Analysis of Rights:

- Hohfeld classified rights into: **claims, privileges, power, and immunity**
- A right can impose a **positive duty** on the State
- Positive duty creates a corresponding **claim** for SCs/STs against the State
- The State's duty to act creates a legal right enforceable under Articles 32 and 226
- **International Law Recognition:** International Covenant on Economic, Social and Cultural Rights recognizes positive rights

5. Comparison with Other Provisions

Other Fundamental Rights requiring positive State action:

- **Article 17** - Abolition of Untouchability
- **Article 23** - Prohibition of trafficking and forced labor
- **Article 24** - Prohibition of child labor in hazardous employment

Conclusion: The fact that a right requires State action does not stop it from being a Fundamental Right.

II. The Birth of Reservation Jurisprudence

A. Mandal Commission

Origin:

- Appointed by **Prime Minister Morarji Desai** on **December 20, 1978**
- Chairman: **Justice B.P. Mandal**
- Tasked with determining criteria for defining **Socially and Educationally Backward Classes (SEBCs)**

Task Given to Mandal Commission:

1. Determine criteria for defining socially and educationally backward classes
2. Recommend steps for their advancement
3. Examine the desirability of reservation in appointments/posts for such classes
4. Present a report to the President

The "Birth" Story (Professor's Account):

- Dr. Ambedkar **did not define** who constitutes a backward class
- When asked, Dr. Ambedkar left it to the government of the day to decide
- This led to the creation of the commission to identify backward classes
- **Note:** The professor emphasizes that Dr. Ambedkar strategically avoided defining backward classes, recognizing it as a difficult task, so the government had to decide.

B. The Story of the Report's Implementation

The Report was Submitted in 1980:

- It was left untouched, gathering dust for years

The Turning Point - V.P. Singh's Strategy (1990):

- When V.P. Singh's government faced a political crisis, his chair was "shaking"
- Someone suggested that the 50-52% backward classes could save him
- He implemented **27% reservation** for OBCs through executive order

The 50% Social Backward Class Thesis:

- The professor asserts that the OBC population was estimated at 52% at the time

- This is the reason 27% reservation was chosen (as part of the 50% ceiling)

C. The Anti-Reservation Protests (1990)

Significant Protests:

- Many students preparing for UPSC (3+ years) found their chances drastically reduced
- With 500 seats, if reservations take 300, only 200 seats remain for general category
- **Professor's Account:** 60-70 people died by self-immolation, and around 200 died due to burns
- The government provided incomplete data, and there was less media coverage due to limited social media and mobile phones at the time

Government Response:

- The government remained "deaf and blind" to the protests
- No action was taken despite widespread unrest
- Students then approached the Supreme Court

III. Kaka Kalelkar Commission (First Backward Classes Commission)

A. Background

- Established in **1953** (Chairman: **Kaka Kalelkar**)
- Report submitted in **1955-56**
- First attempt to identify backward classes

B. Criteria Used by Kaka Kalelkar Commission

1. **Traditional apathy for education** due to social and environmental conditions
2. **Occupational handicap**
3. **Poverty and lack of educational institutions** in rural areas
4. **Living in inaccessible areas**

C. Failure and Dissent

Key Issues with the Report:

- The Commission **could not present a unanimous report**
- **Five members recorded minutes of dissent**
- **Opposed linking caste with backwardness**
- **Even Chairman Kalelkar opposed caste as the basis for backwardness**

Government's Response (1961):

- The Union Government issued a memorandum stating:
  - "It cannot be denied that the caste system is the greatest hindrance in the way of our progress towards an egalitarian society, and the recognition of the specified castes as backward may serve to maintain and even perpetuate the existing distinctions on the basis of caste."
- Government concluded that "some positive and workable criteria should be devised"
- No all-India list of OBCs was drawn up
- State Governments were given the discretion to choose their own criteria
- The Central Government preferred applying **economic tests rather than going by caste**

IV. Mandal Commission: Detailed Analysis

A. Methodology

Scope of Research:

- Conducted an **empirical survey** of **405 out of 406 districts**
- Visited **two villages and one urban area** from each district
- The commission made a genuine effort to conduct an objective field survey

B. Criteria for Identifying Backward Classes

The Commission developed **11 criteria** in **three categories**:

Social Indicators (Weightage: 3 points each):

1. Castes/classes considered socially backward by others (general perception)
2. Castes/classes depending mainly on manual labor
3. **Early marriage (child marriage):** Castes/classes where 25% of females and 10% of males marry above the state average at a very young age

4. **Female participation in work:** Where female participation in work is at least 25% above the state average (indicating economic compulsion)

Educational Indicators (Weightage: 2 points each):

5. Castes/classes where the number of children in the age group of 5-15 years who never attended school is at least 25% above the state average
6. Castes/classes where the dropout rate is at least 25% above the state average
7. Castes/classes where the proportion of matriculates is at least 25% below the state average

Economic Indicators (Weightage: 1 point each):

8. Castes/classes with average value of family assets at least 25% below the state average
9. Castes/classes where the number of families living in kutcha houses is at least 25% above the state average
10. Castes/classes where the source of drinking water is beyond ½ km from the house
11. Castes/classes where the number of families with no land or only "khasra" land is at least 25% above the state average

Scoring System:

- **Castes with a score of 11 points (50%) or above** were listed as socially and educationally backward
- If the number of households covered for any particular caste was below 20, it was excluded (sample too small for dependable inference)

C. Evaluation of the Criteria

- This cannot be said to be the best method, but it was the **best effort**
- Cannot be called **arbitrary** - alternative methods could exist, but this method was suited for the task
- The **economic indicators** were included as they directly flowed from social and educational backwardness

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V. Indra Sawhney v. Union of India (1992) - The Mandal Case

A. Key Issues Decided

1. Can reservation be given by executive order?

- **Held:** Yes, reservation can be given by executive order
- The Constitution itself has an **enabling provision**
- Parliament does not need to pass a law for this purpose
- This was crucial because V.P. Singh lacked parliamentary majority

2. Is Article 16(4) an exception to Article 16(1)?

- Following *N.M. Thomas*, held that it is **not an exception**
- It is a **facet of equality**

3. Who are the "backward class of citizens"?

- **Held:** Backward class **cannot be determined by caste alone** (following *Balaji*)
- However, **caste can be a starting point** for identifying social backwardness
- **Creamy layer concept** introduced: Those in the advanced social/economic level within a backward class must be excluded

Creamy Layer:

- Justice P.B. Jeevan Reddy: When a member of a backward class reaches an "advanced social level or status," they "would no longer belong to the backward class and would have to be weeded out"
- This was done to prevent the rich and privileged within backward classes from monopolizing benefits

4. Can reservation be given for promotions?

- The Court addressed this question but with varying opinions

5. Can there be sub-classification within backward classes?

- The Court left this open

6. Can reservation exceed 50%?

- **Held:** Reservation cannot ordinarily exceed 50%
- This was a **rule of caution**, not an absolute rule (following the view in *N.M. Thomas*)
- In rural and remote areas, some relaxation could be made if the situation so warranted

Note: In *M.R. Balaji v. State of Mysore (1963)*, the Court struck down 68% reservation, holding that reservation should generally not exceed 50% .

7. Can carry forward rule be applied?

- The Court addressed the issue of unfilled reserved vacancies being carried forward

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VI. Important Caselaw References

A. M.R. Balaji v. State of Mysore (1963)

- **Held:** Caste cannot be the sole determining criterion for gauging backwardness
- Poverty or the place where they live can also be criteria
- **Struck down 68% reservation** as excessive
- Article 15(4) was viewed as an **exception** to Article 15(1)

Important Clarification: The Supreme Court made it clear that its judgment did not affect the reservation made for Scheduled Castes and Scheduled Tribes .

B. State of Kerala v. N.M. Thomas (1976)

- **Seven-judge bench**
- **Five judges held:** Article 16(4) is not an exception but a facet of Article 16(1)
- The Court envisaged not formal or legal equality but **proportional equality** or **progressive elimination of pronounced inequality**
- Reservation should not exceed 50% (rule of caution)

Note: The 50% limit is not an absolute rule and is "a rule of caution" .

C. A.B.S.K. Sangh v. Union of India

- **Case Name:** *Akhil Bharatiya Shoshit Karmachari Sangh v. Union of India*
- Justice Chinnappa Reddy reiterated that Article 16(4) is not an exception
- Demonstrated the power of PIL (Public Interest Litigation)

D. Indra Sawhney v. Union of India (1992)

- **Nine-judge bench** (the largest bench for reservation issues)
- Also known as the **Mandal Commission Case**
- **Major Holdings:**
  1. Executive order is sufficient for reservation
  2. Article 16(4) is not an exception
  3. Creamy layer must be excluded
  4. 50% ceiling on reservations
  5. Caste cannot be the sole criterion but can be a starting point

Important: The report of the Mandal Commission was submitted on **December 31, 1980** and implemented in **1990** by V.P. Singh's government .

VII. Key Quotes and Concepts

A. Dr. Ambedkar on Backward Classes

- Did **not define** backward classes
- Left it to the **government to decide**
- The professor notes that this was a strategic move to avoid a politically difficult definition

B. Jawaharlal Nehru's Chain Metaphor

- The professor cites Nehru's metaphor: "A chain is only as strong as its weakest link"
- Similarly, the country is only as strong as its weakest citizen
- Similarly, a class is only as strong as its weakest student

C. The Professor's Personal Philosophy

- "Inhi uljhe dimaagon mein ghanee khushiyon ke lachche hain, humein paagal hi rehne do, hum paagal hi achchhe hain!"
- He embraces being called "paagal" (crazy) rather than being a "yes sir" person
- Encourages students to question and disagree rather than blindly follow

D. Mantra for Student Presentations

- Use simple language
- If a word is difficult to pronounce, say "repeated" instead of "reiterated"
- **"Find out an easy word"** - never get stuck on difficult vocabulary

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VIII. Important Observations

A. Constitutional Framework

- Part III (Articles 12-35) contains Fundamental Rights
- Article 15(4) and 16(4) are **within Part III** and therefore Fundamental Rights
- The question is not whether they are Fundamental Rights, but whether they are **exceptions or facets** of equality

B. The Concept of Equality

- **Article 14** (Right to Equality) is the bedrock
- **Article 15** (Prohibition of discrimination on certain grounds)
- **Article 16** (Equality of opportunity in matters of public employment)
- The professor emphasizes reading these articles together, not in isolation

C. Judicial Evolution

- **Balaji (1963):** Article 15(4) is an exception to Article 15(1)
- **N.M. Thomas (1976):** Article 16(4) is not an exception
- **Indra Sawhney (1992):** Article 15(4) and 16(4) are facets of equality, not exceptions

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IX. Key Cases Summary

Case	Year	Bench Size	Key Holding
M.R. Balaji v. State of Mysore	1963	-	Caste not sole criterion; reservation ≤ 50%
State of Kerala v. N.M. Thomas	1976	7 Judges	Art 16(4) is a facet, not an exception
A.B.S.K. Sangh v. Union of India	-	-	Art 16(4) is not an exception
Indra Sawhney v. Union of India	1992	9 Judges	Largest bench; 50% ceiling; creamy layer; executive order valid

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X. References and Citations

1. - Indian Kanoon - State of Kerala v. N.M. Thomas (1976) 2 SCC 310 and Indra Sawhney v. UOI (1992) Supp. 3 SCC 217
2. - Mandal Commission Case: Indra Sawhney v. Union of India, 1992 SCC (L&S) Supp. 1
3. - Heggade Janardhan Subbarye v. State of Mysore, AIR 1963 SC 702
4. - Mandal Commission criteria for backwardness (Shodhganga)
5. - Kaka Kalelkar Commission Report, 1955-56
6. - SCC Online article on N.M. Thomas and 50% ceiling
7. - Mandal Commission Report analysis (Corporate Law Blog)
8. - Balaji v. State of Mysore, AIR 1963
9. - Indra Sawhney v. Union of India on creamy layer
10. - Kaka Kalelkar Commission dissent and government response
11. - SCC Online article on reservation policies
12. - Mandal Commission Case (Yale Library record)
13. - The Wire article on 50% ceiling
14. - Mandal Commission Report, 1980
15. - Kaka Kalelkar Commission Report

Comprehensive Summary of Constitutional Law Lecture: Articles 15, 16, and Reservation Jurisprudence

1. Scope and Classification of Fundamental Rights (Articles 15 & 16)

Constitutional Context

- **Part III Framework:** Articles 12 through 35 of the Constitution of India embody Fundamental Rights. Both Article 15(4) and Article 16(4) are situated within Part III.
- **Textual vs. Substantive Interpretation:** While a literal reading might suggest that Articles 15(4) and 16(4) operate as exceptions to the general non-discrimination mandates of Articles 15(1) and 16(1), judicial interpretation has established that they are integral facets of the Right to Equality rather than mere exceptions.

Evolution of Judicial Interpretation

- **Initial View:** Early judicial rulings viewed Article 16(4) as an exception to the rule of equal opportunity under Article 16(1).
- **State of Kerala v. N.M. Thomas (1976):** A seven-judge bench of the Supreme Court ruled (5:2 majority) that Article 16(4) is not an exception to Article 16(1), but rather an affirmative provision designed to achieve real equality of opportunity.
- **A.B.S.K. Sangh (Akhil Bharatiya Soshit Karamchari Sangh) v. Union of India (1980):** The Supreme Court reaffirmed that special provisions for disadvantaged groups are an emphatic facet of equality rather than an exception to it.
- **Indra Sawhney v. Union of India (1992):** A nine-judge bench firmly established that Article 16(4) is an instance of reasonable classification under

Article 16(1) and serves as an effective mechanism for realizing substantive equality.

2. Theoretical and Jurisprudential Foundations

Concept of Equality under Article 14

- **Equal Treatment among Equals:** Article 14 guarantees equality before the law and equal protection of the laws. Equal treatment of unequals is as much a violation of the Constitution as unequal treatment of equals.
- **Ronald Dworkin's Distinction:**
  - *Right to Equal Treatment:* The right to an equal distribution of an opportunity or resource.
  - *Right to Treatment as an Equal:* The fundamental right to be treated with equal concern and respect by the State.
  - Differential treatment (affirmative action) by the State is constitutional as long as it stems from equal concern and respect, rather than prejudice, contempt, or hostility toward any group.

Interplay between Fundamental Rights and Directive Principles (DPSPs)

- **Harmonious Construction:** Fundamental Rights (Part III) and Directive Principles of State Policy (Part IV) must be read in harmony—a principle recognized as part of the Basic Structure of the Constitution.
- **Reading DPSPs into Fundamental Rights:**
  - *Right to Education:* Articles 41, 45, and 46 were read alongside Article 21 (Right to Life and Personal Liberty) to establish the Fundamental Right to Education (Article 21A).
  - *Affirmative Action:* Articles 15(4) and 16(4) draw substantive meaning from Articles 38 (promoting social welfare) and 46 (promoting the educational and economic interests of SCs, STs, and weaker sections).

Article 335 and Administrative Efficiency

- Article 335 mandates that the claims of Scheduled Castes (SCs) and Scheduled Tribes (STs) in public appointments must be considered consistently with the maintenance of administrative efficiency.
- Taking SC/ST claims into account under Article 335 does not inherently imply a compromise or reduction in administrative efficiency.

Enforcement and Positive Obligations

- **Hohfeldian Analysis of Rights:** Wesley Newcomb Hohfeld classified rights into Claims, Privileges, Powers, and Immunities. Positive state duties create corresponding enforceable legal claims for protected classes.
- **International and Comparative Standards:** Positive state action is recognized internationally (e.g., the International Covenant on Economic, Social and Cultural Rights) and in foreign welfare-state constitutions (e.g., Germany).
- **Judicial Enforcement:** Both State action and inaction regarding affirmative duties can be challenged under Articles 32 and 226 of the Constitution, including through writs such as *Mandamus*.

3. Commissions on Backward Classes

First Backward Classes Commission (Kaka Kalelkar Commission, 1955)

- Established in 1955 under the chairmanship of Kaka Kalelkar.
- Attempted to identify backward classes using criteria such as traditional apathy toward education, occupational handicaps, poverty, and living in remote areas.
- The report was ultimately not implemented, as the Chairman himself expressed reservations regarding its methodology and recommendations.

Second Backward Classes Commission (Mandal Commission, 1979)

- Appointed in 1979 under the chairmanship of B.P. Mandal.
- **Core Mandates:**
  1. Determine criteria for identifying Socially and Educationally Backward Classes (SEBCs).
  2. Recommend measures for their advancement.
  3. Evaluate the desirability of reservations in public posts under Article 16(4).
- **Survey Methodology:**
  - Conducted extensive empirical field surveys covering 405 out of the 406 districts existing in India at the time.
  - Surveyed two villages and one urban center per district.
- **Indicators and Scoring:**
  - Utilized 11 criteria divided across **Social**, **Educational**, and **Economic** indicators.
  - Social indicators were assigned higher weightage (e.g., manual labor reliance, early marriage rates, perception by others).
  - Castes or groups scoring above 50% on the weighted scale were categorized as backward.
- **Findings:** The Commission identified backward classes as comprising approximately 52% of India's population and recommended a 27% reservation in public employment.

4. Implementation and the *Indra Sawhney* Case (1992)

Implementation in 1990

- In 1990, the Union Government led by Prime Minister V.P. Singh implemented the Mandal Commission's recommendation by granting a 27% reservation to Other Backward Classes (OBCs) via an executive order.
- The decision triggered nationwide protests and widespread legal challenges.

Key Issues Framed in *Indra Sawhney v. Union of India*

1. **Executive Orders for Reservation:** Whether reservation under Article 16(4) can be introduced through an executive order without explicit legislative enactment (*Held: Yes*).
2. **Nature of Article 16(4):** Whether Article 16(4) is an exception to Article 16(1) (*Held: No, it is an emphatic facet of equality/reasonable classification*).
3. **Identification of Backward Classes and Role of Caste:**
   - *M.R. Balaji v. State of Mysore (1963)* previously held that caste alone cannot define a backward class.
   - *Indra Sawhney (1992)* clarified that a social caste can constitute a "class" for the purposes of Article 16(4) if it is shown to be socially and educationally backward.
4. **Dr. B.R. Ambedkar's Intent:** During the Constituent Assembly debates, Dr. B.R. Ambedkar deliberately refrained from rigidly defining "backward classes" in the text of the Constitution, leaving the operational identification to the executive to allow flexibility over time.
5. **Additional Issues Addressed by the Bench:**
   - Permissibility of reservation in promotions.
   - Validity of sub-classification within backward classes (e.g., backward vs. more backward).
   - Applicability of the 50% ceiling rule on total reservations.
   - Validity of the "carry forward" rule for unfilled reserved vacancies